ANTI-CORRUPTION COMMISSION

COMMISSION MEETING FORM

MEETING NO.	117th Commission Meeting
DATE:	15 February 2023
TIME:	02:00 PM
VENUE:	Third Floor Meeting Room

#	AGENDA & DISCUSSIONS	DECISIONS
1.	**Regular HR update – HRS** **The decision of the 87th HRC meeting were apprised to the Commission:** - Sonam Choden of DoI's appeal to cancel her transfer to Trashigang has been kept on abeyance by the HRC for she has been asked to provide justification for the false information submitted. - To change the prioritized field of study in Australia Awards Scholarships commencing in 2024 from Masters of Forensic Science to Masters of Criminology in the AusAid. - Appointment of undergraduate student with Degree on Forensic Science on contract as proposed by the RCSC.	**The Commission upheld the decision of the HRC to ask justification from Sonam Choden and emphasized that misrepresentation or any false information will not be tolerated in the ACC which promotes highest levels of integrity and ethics.** **Recognizing the need of Masters of Forensic Science, the Commission directed HRS to firstly request the RCSC to include Technical Service group to be eligible for the program. In doing so, the HRS was directed to highlight the manpower strength of two in the Forensic Unit and the limitations of one of the staff to participate in such open competition. If this is not approved by the RCSC, the HRS to initiate changing the prioritized field to Master of Criminology which is equally important for the ACC.** **Endorsed the decision of the HRC to request RCSC to initiate the due process of appointing the candidate on contract with the ACC.** **Further, the Commission directed HRS to plan the next round of recruitment/selection to fill the existing gaps in Departments/Division.**
2.	Way forward on sharing of case information to the agencies concerned – CFD, DoPS; DoI & LD	**The Commission decided to adopt a standard practice of informing the head/s of the agencies concerned on the outcome of the investigation by sharing a**

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	This was a follow-up to the directive of the 116th Commission meeting. While adopting a standard practice to share information related to post-investigation referrals to the agencies concerned was acknowledged, the issues related to sharing sub-judice information during the investigation was discussed.	**copy of the letter (be it a prosecution or administrative referral letter), with attached details of the relevant people implicated.** **Besides the heads of the agencies concerned, the copy of the referrals to be also shared with Royal Audit Authority (RAA), Royal Civil Service Commission (RCSC), Department of Procurement and Properties of MoF related to the suspension of license, and DoPS for IVS. DoI and LD were directed to review the need to include any other agencies on this list. It was noted that information sharing with the RCSC on the implicated civil servants is expected to improve with the integration of ACC, OAG and the ZESt systems. However, as an interim measure, the copy of referrals shall be shared in hard copy.** **However, with regard to cases under investigation, which are sub-judice, was decided to be shared only on a need basis. For instance, circumstances requiring the strategic intervention of the heads concerned may be informed in addition to the current practice of informing on public servants' detention/suspension to the relevant heads of the agencies.** **In this regard, DoI, LD, and PPD were directed to develop a standard checklist for adoption and compliance by the DoI and LD in sharing such relevant information hereafter. Given the separate nature of actions required, a distinct checklist to be adopted for prosecution and post-investigation administrative referrals. DoI to ensure compliance of the checklists related to prosecution and administrative referrals, while LD to ensure compliance on suspension and detention during investigations.** **The Commission also directed the following:** **- PPD to expedite the signing of MoU with the RAA in consultation with LD and DoPS;** **- As decided in the past, for issuance of Integrity Vetting Report related to P2 and above positions, including**

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		executives, DoPS to consult or get more details from DoI until the CIMS is enhanced; **- CFD, DoPS to immediately check whether the actions on reduced backlog complaints and desk review has been incorporated in the IMS to ensure there is no gap in the records.**
3.	Update on myACC app-ICT *It was apprised that the third-party developer has not yet obtained 'Mobile app privacy policy' clearance on the app.*	**The Commission directed DoPS and ICT to follow-up with the developer and at the same time to explore and be ready with other options if the app does not meet the requirements of Android and iOS. The same was directed to be apprised to the Commission in its next meeting.**
4.	Update on IT upgradation works in Head office – ICTS *The ICTS apprised the Commission on various IT works which are either completed or ongoing such as network redesigning, increasing bandwidth for meeting rooms, installation of CCTV, enhancement of CIMS including SRS development of other modules, installation and configuration of biometrics, development of a system for resource booking and dispatch, procurement of laptops, among others.*	**The Commission commended ICTS for its different works in enhancing IT services including strengthening the security of networks and systems.** **The ICTS was directed to explore the installation of an 'interactive board' in the 3rd floor meeting room, in consultation with the Finance Committee. Further, ICT and AFS was directed to rationalize the issuance of 18 new laptops as against the greater number of requirements.**
5.	Brief update from Regional Offices – ROs *The Heads of Phuntsholing, Trashigang and Bumthang Regional Offices apprised various initiatives of the respective offices to the Commission.* *The Commission's decision to accommodate a working space for three OAG officials in the ground floor (administrative block) of Phuntsholing Regional Office, upon request of the OAG, was informed. It was informed that the costs and arrangements related to partition and installation will be discussed further with the OAG.* *The Commission informed the team in Bumthang Regional Office to arrange a reception for Lhuntse Dzongdag during her enroute to Lhuntse.*	**Commending various activities related to prevention, education and investigation in the Regional Offices the Commission also directed the Heads to constantly encourage team spirits to boost morale, positive attitude and enthusiasm of the staff. Further, any technical support required in discharging different functions to be sought from the Commission and Directors of the Departments.** **The Commission directed Head of Secretariat Services to take immediate action on the Commission's decision to transfer stock of the Trashigang Regional Office to the Dzongkhag Administration.**
6.	Update on institutional linkage with ECB-PPD *As against the ACC's proposal to sign a Memorandum of Understanding on different*	**The Commission decided to sign Standard Operating Procedure for Integrity Assessment Certificate (IAC) with the ECB. In this regard, PPD was directed to revisit the draft SoP in**

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	areas of collaboration related to e-learning courses for aspiring parliamentary candidates, civic and voter education, Asset Declaration and Integrity Assessment Certificate (IAC), the Election Commission of Bhutan (ECB) suggested to prioritize signing of Standard Operating Procedure for IAC. Given that the civic and voter education, and Asset Declaration have been taken on board by the ECB, the Commission discussed the priority to institutionalize the IAC for election purposes.	**consultation with LD and DoPS and accordingly initiate the signing at the earliest.**
7.	Others: - M&E system development - PPD *While the concept note for in-house development of M&E system was endorsed by the management, the PPD proposed to defer the proposal to 13th FYP. This was in view of the expected change in the GPMS in the 13th FYP which may pose challenges later in integrating the ACC's M&E with the GPMS or a similar kind of national system. Further, as per the notification of GovTech agency, any new system development in agencies is to be 'kept on hold'.* - Review draft Integrity Assessment Certificate – CFD, DoPS *The Commission reviewed the certificate template proposed by the Department.* - Follow-up on meeting with OAG	**Decided to be deferred to 13th FYP.** **The certificate was endorsed with comments to include the intended purpose of the certificate and specifically highlight Section 4.3.3.2 of the Rules of Elections Conduct in the certificate.** **The Commission directed LD to discuss and apprise the Commission on the Auditor General's proposal to investigate the relatively smaller scale of embezzlement cases. The same to be taken up with the RAA before the tripartite meeting.** **Further, LD to discuss and present pros and cons of clustering legal services to the Commission vis-à-vis the mandate of the ACC.**

Commissioner **Commissioner** **Chairperson**

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